

Court No. - 3

Case :- WRIT - C No. - 26979 of 2011

Petitioner :- Shamshul Qamar

Respondent :- Pvvnl And Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble Amitava Lala,J.

Hon'ble Sanjay Misra,J.

It appears to this court that the writ petitioner's challenge has been made with regard to the communication of the respondent licensee dated 31.3.2011 with regard to enhancement of load, payment thereof and increased consumption. We find under Clause 7.7.4 that reduction or enhancement of load comes under the head billing therein and any grievance with regard there to can be adjudicated only by the authority i.e. Consumer Grievance Redressal Forum under Section 7.10. of the U.P. Electricity Supply Code, 2005.

Against this background, we cannot pass any order than to direct the petitioner to make an application before the Consumer Grievance Redressal Forum within a period of one week from the date of communication of certified copy of the order so that it can be heard and disposed of within a period of one month thereafter.

The petitioner wanted to extend the scope of the writ petition by filing supplementary affidavit in connection with lodging of F.I.R. about theft and action of the Executive Engineer on the basis of the alleged direction of the Managing Director. He wanted to express his view on the basis of showing various references and also contended that the disconnection without notice is squarely prohibited by the Electricity Act, 2003. But according to us we are not in a position to extend the scope of the writ petition which is different subject matter.

The petitioner's remedy is open with regard to the same for the purpose of taking appropriate steps.

So far as the disconnection is concerned the petitioner wanted an order of connection to which respondent authority has contended before this court that now the final assessment has been made against which there is a provision of appeal.

Against this background, we cannot pass any order, however passing of this order will not prevent the petitioner to take appropriate steps in accordance with law provided that the authority serves such order of final assessment to the petitioner.

With the above observation and order we dispose of the writ petition, however without imposing any cost.

Order Date :- 20.5.2011

Pravin